

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FIRST SECTION

CASE OF ZOLOTOVA AND OTHERS v. RUSSIA

(Applications nos. 23893/15 and 32 others –
see appended list)

JUDGMENT

STRASBOURG

27 April 2023

This judgment is final but it may be subject to editorial revision.



In the case of Zolotova and Others v. Russia,

The European Court of Human Rights (First Section), sitting as a Committee composed of:

Lətif Hüseynov*, President*,
Ivana Jelić,
Erik Wennerström*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 6 April 2023,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as participants or organisers of public assemblies. Some applicants also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

III. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

7. The applicants complained principally of disproportionate measures taken against them as participants or organisers of public assemblies, namely their arrest in relation to the dispersal of these assemblies and their conviction for administrative offences. They relied, expressly or in substance, on Article 11 of the Convention.

8. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

9. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts), *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014 and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

10. Having examined all the material submitted to it, having dismissed the Government's objection of non-exhaustion of domestic remedies (see *Smadikov v. Russia* (dec.), no. 10810/15, 31 January 2017) and having due regard to the issue of compliance with the six-month period under Article 35 § 1 of the Convention (see *Saakashvili* v. Georgia (dec.), nos. 6232/20 and 22394/20, §§ 46-59, 1 March 2022, in which the Court addressed the COVID- related extension of the period in question), the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

11. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. Some applicants submitted other complaints which also raised issues under the Convention and Protocols thereto, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible. Having examined all the material before it, the Court concludes that they also disclose violations of the Convention in the light of its findings in *Butkevich v. Russia*,

no. 5865/07, §§ 63-64, 13 February 2018; *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 115-31, 10 April 2018; *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019; and *Teslenko and Others v. Russia*, nos. 49588/12 and 3 others, §§ 72-74 and 81-82, 5 April 2022, as to administrative escorting to and/or detention in a police station beyond three hours for non-custodial offences, without substantiating the impossibility to compile an offence report at the rally venue or any exceptional circumstances or another valid ground under the Code of Administrative Offences (CAO) or continued detention after the offence report was compiled; *Karelin v. Russia*, no. 926/08, §§ 58-85, 20 September 2016, concerning the absence of a prosecuting party in criminal proceedings under the Federal Code of Administrative Offences (the CAO); and *Korneyeva*, cited above, §§ 62-65, concerning the right not to be tried or punished twice in criminal proceedings.

V. REMAINING COMPLAINTS

13. In view of the findings in paragraphs 11 and 12 above, there is no need to examine the other aspects of the complaints raised by some applicants under Articles 5 and 6 of the Convention.

14. Lastly, the Court has examined other complaints raised in application no. 73802/17 and considers that, in the light of all the material in its possession and in so far as the matters complained of are within its competence, these complaints either do not meet the admissibility criteria set out in Articles 34 and 35 of the Convention or do not disclose any appearance of a violation of the rights and freedoms enshrined in the Convention or the Protocols thereto. It follows that they must be rejected in accordance with Article 35 § 4 of the Convention.

VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

15. Article 41 of the Convention provides:

> "If the Court finds that there has been a violation of the Convention or the Protocols thereto, and if the internal law of the High Contracting Party concerned allows only partial reparation to be made, the Court shall, if necessary, afford just satisfaction to the injured party."

16. Regard being had to the documents in its possession and to its case-law (see, in particular, *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, § 22, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with these applications as they relate to facts that took place before 16 September 2022;

3. *Declares* the complaints under Article 11 of the Convention and the other complaints under well-established case-law of the Court, as set out in the appended table, admissible, *decides* that it is not necessary to examine the other aspects of the complaints raised by some applicants under Articles 5 and 6 of the Convention and *declares* the remainder of application no. 73802/17 inadmissible;

4. *Holds* that there has been a violation of Article 11 of the Convention;

5. *Holds* that there has been a violation of the Convention and Protocols thereto as regards the other complaints raised under well-established case-law of the Court (see the appended table);

6. *Holds*
   (a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;
   (b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 27 April 2023, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina	Lətif Hüseynov
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[i]
1.	23893/15 03/05/2015	**Yelena Vladimirovna ZOLOTOVA** 1968		Anticorruption rally Moscow, 14/09/2014	Article 20.2 § 5 of CAO	fine of RUB 18,000	Moscow City Court 04/12/2014		3,500
2.	64088/16 28/10/2016 (5 applicants)	**Mikhail Vladimirovich AKSARIN** 1980 **Ivan Anatolyevich KARAMNOV** 1988 **Aleksandra Mikhaylovna LAVROVA** 1985 **Kseniya Anatolyevna TRETYUKHINA** 1991 **Marina Samuelovna SHEBELYAN** 1989	Zboroshenko Nikolay Sergeyevich Mytishchi	"Moving exhibition Ne mir" Moscow, 13/03/2016 Karamnov, Lavrova and Tretyukhina Shebelyan Aksarin	 Article 20.2 § 5 of CAO Article 20.2 § 5 of CAO Article 20.2 § 5 of CAO	 fine of RUB 10,000 fine of RUB 10,000 fine of RUB 10,000	Moscow City Court: 20/05/2016 22/06/2016 06/07/2016	For each applicant: Art. 5 (1) - unlawful detention - on 13/03/2016 escorting to and detention in a police station for compiling offence reports, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000, to each applicant

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3.	2665/17 27/12/2016	**Andrey Mikhaylovich BAZHUTIN** 1971 **Arkadiy Anatolyevich MOSHNIKOV** 1962	Glukhov Aleksey Vladimirovich Novocheboksarsk	Rally against a road-tax system "Platon" Rostov-on-Don, 24/08/2016	Article 20.2 § 5 of CAO	fine of RUB 10,000 to each applicant	Voronezh Regional Court 10/10/2016		3,500, to each applicant
4.	69342/17 22/08/2017	**Mikhail Andreyevich PCHELIN** 1990	Benyash Mikhail Mikhaylovich Sochi	Anticorruption rally Sochi, 26/03/2017	Article 20.2 § 2 of CAO	fine of RUB 20,000	Krasnodar Regional Court 05/05/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500
5.	73802/17 07/09/2017	**Oleg Borisovich KABATOV** 1974	Terekhov Konstantin Ilyich Moscow	Anticorruption rally St Petersburg, 12/06/2017	Article 19.3 § 1 of CAO Article 20.2 § 5 of CAO	fine of RUB 500 fine of RUB 10,000	St Petersburg City Court 18/07/2017	Art. 5 (1) - unlawful detention - on 12-13/06/2017 escorting to and detention in a police station for and after compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
6.	79030/17 09/11/2017	**Aleksandr Iosifovich DEGTYAREV** 1951	Terekhov Konstantin Ilyich Moscow	Anticorruption rally Rostov-on-Don, 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Rostov Regional Court 19/05/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings – in both cases	5,600
7.	28723/18 07/06/2018		Zhdanov Ivan Yuryevich Vilnius	Rally to support A. Navalnyy Rostov-on-Don, 07/10/2017	Article 20.2 § 8 of CAO	fine of RUB 150,000	Rostov Regional Court 07/12/2017		

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8.	79232/17 09/11/2017	**Vladimir Aleksandrovich TERENTYEV** 1977	Terekhov Konstantin Ilyich Moscow	Anticorruption rally Gatchina, 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Leningrad Regional Court 31/05/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings – in both cases	3,500
9.	6089/18 27/12/2017		-	Event for collecting petitions to the Russian President St Petersburg, 29/04/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	St Petersburg City Court 27/06/2017		
10.	82860/17 30/11/2017	**Illarion Gennadyevich BORTS** 1985	Memorial Human Rights Centre Moscow	Anticorruption rally Moscow, 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 02/06/2017	Art. 5 (1) - unlawful detention - on 26/03/2017 and 27/07/2019 escorting to a police station for compiling offence reports (in application no. 25320/20 - the report was then compiled on 30/07/2019 only), Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings – in both cases	4,000
11.	25320/20 23/06/2020			Rally for fair elections to Mosgorduma Moscow, 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 26/09/2019		

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12.	3646/18 22/12/2017	**Mariya Davidovna MOLDAVSKAYA** 1970	Chertkov Andrey Veniaminovich St Petersburg	Opposition rally St Petersburg, 29/04/2017	Article 19.3 § 1 of CAO Article 20.2 § 5 of CAO	fine of RUB 500 fine of RUB 10,000	St Petersburg City Court 27/06/2017	Art. 5 (1) - unlawful detention - on 29-30/04/2017 escorting to and detention in a police station for and after compiling offence reports, Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - Final decision in both sets of the proceedings - 27/06/2017, St Petersburg City Court; Art. 19.3 § 1 CAO and Art. 20.2 § 5 CAO; overlap of the facts constituting the basis for the applicant's prosecution and punishment in the second set of proceedings with substantially the same facts underlying her conviction in the first set of proceedings	4,000

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13.	3649/18 12/12/2017	**Dmitriy Sergeyevich MIKHEYEV** 1972	Golubok Sergey Aleksandrovich The Hague	Anticorruption rally St Petersburg, 12/06/2017	Article 19.3 § 1 of CAO Article 20.2 § 5 of CAO	1 day of detention fine of RUB 10,000	St Petersburg City Court 27/06/2017	Art. 5 (1) - unlawful detention - on 12-13/06/2017 escorting to and detention in a police station for and after compiling offence reports, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - in both sets of proceedings, Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - Final decision in both set of proceedings - 27/06/2017, St Petersburg City Court; Art. 19.3 § 1 CAO and Art. 20.2 § 5 CAO; overlap of the facts constituting the basis for the applicant's prosecution and punishment in the second set of proceedings with substantially the same facts underlying his conviction in the first set of proceedings	5,000 in respect of non-pecuniary damage; 850, in respect of legal costs, to be paid directly to the representative, S. Golubok
14.	3673/18 08/01/2018	**Emil Vasifovich ABDULOV** 1996	Terekhov Konstantin Ilyich Moscow	Anticorruption rally St Petersburg, 12/06/2017	Article 19.3 § 1 of CAO Article 20.2 § 5 of CAO	fine of RUB 500 fine of RUB 10,000	St Petersburg City Court 27/07/2017	Art. 5 (1) - unlawful detention - on 12-13/06/2017 escorting to and detention in a police station for and after compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000

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15.	5155/18 08/01/2018	**Rasul Rafikovich ABDULIN** 1992	Terekhov Konstantin Ilyich Moscow	Anticorruption rally Moscow, 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 12/07/2017	Art. 5 (1) - unlawful detention - on 26/03/2017 escorting to a police station for compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
16.	8780/18 02/02/2018	**Kirill Aleksandrovich MUKAYEV** 1991	Terekhov Konstantin Ilyich Moscow	Anticorruption rally Moscow, 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 14/08/2017	Art. 5 (1) - unlawful detention - on 26-27/03/2017 escorting to and detention in a police station for and after compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
17.	9368/18 16/02/2018	**Georgiush Ryza KASHAKHI** 1989	Memorial Human Rights Centre Moscow	Anticorruption rally Moscow, 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 16/08/2017	Art. 5 (1) - unlawful detention - on 26/03/2017 escorting to and detention in a police station for compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
18.	21407/18 23/04/2018	**Irina Petrovna YEPIFANOVSKAYA** 1955	Prikhodina Yelizaveta Aleksandrovna Moscow	Rally against political persecution Moscow, 30/06/2017	Article 20.2 § 5 of CAO	fine of 10,000 RUB	Moscow City Court 24/10/2017	Art. 5 (1) - unlawful detention - on 30/06/2017 and 02/07/2017 escorting to and detention a police station for compiling offence reports,	4,000

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19.	39979/18 09/08/2018			Assembly to support Y. Dmitriyev Moscow, 02/07/2017	Article 20.2 § 5 of CAO	fine of RUB 5,000	Moscow City Court 16/02/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings – in both cases	
20.	22814/18 30/04/2018	**Nikita Dmitriyevich ROMANOV** 1988	Zboroshenko Nikolay Sergeyevich Mytishchi	Anticorruption rally Moscow, 12/06/2017	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 08/02/2018	Art. 5 (1) - unlawful detention - on 12/06/2017 and 27/07/2019 escorting to a police station for compiling offence reports, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings – in both cases	4,000
21.	14296/20 22/01/2020			Rally for fair elections to Mosgorduma Moscow, 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 06/11/2019		
22.	28164/18 04/06/2018	**Andrey Borisovich AZHIMOV** 1988	Zhdanov Ivan Yuryevich Vilnius	Anticorruption rally Moscow, 12/06/2017	Article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 04/12/2017	Art. 5 (1) - unlawful detention - on 12/06/2017 escorting to and detention a police station for compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
23.	29959/18 15/06/2018	**Artem Vasilyevich VOYTENKO** 1983	Zhdanov Ivan Yuryevich Vilnius	Anticorruption rally Bryansk, 07/10/2017	Article 20.2 § 5 of CAO	fine of RUB 15,000	Bryansk Regional Court 15/12/2017		3,500
24.	33002/18 09/07/2018	**Arsen Aleksandrovich ULLUBIEV** 1985	Memorial Human Rights Centre Moscow	Anticorruption rally Moscow, 12/06/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 24/01/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500

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25.	33140/18 03/07/2018	**Mikhail Vladimirovich STEPANETS** 1978	Zhdanov Ivan Yuryevich Vilnius	Anticorruption rally Moscow, 12/06/2017	Article 20.2 § 6.1 of CAO	fine of RUB 10,000	Moscow City Court 12/01/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500
26.	39277/18 07/08/2018	**Arina Andreyevna MESHCHERYAKOVA** 1999	Zhdanov Ivan Yuryevich Vilnius	"Voters' Strike" rally Volgograd, 28/01/2018	Article 20.2 § 5 of CAO	fine of RUB 10,000	Volgograd Regional Court 07/02/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500
27.	42072/18 24/08/2018	**Dmitriy Aleksandrovich FOKANOV** 1991	Zhdanov Ivan Yuryevich Vilnius	"Voters' Strike" rally Volgograd, 28/01/2018	Article 20.2 § 5 of CAO	fine of RUB 10,000	Volgograd Regional Court 01/03/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500
28.	42080/18 24/08/2018	**Yelena Aleksandrovna KOTENOCHKINA** 1977	Prikhodina Yelizaveta Aleksandrovna Moscow	Assembly to support Y. Dmitriyev Moscow, 02/07/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 16/03/2018	Art. 5 (1) - unlawful detention - on 02/07/2017 escorting to a police station for compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
29.	43667/18 03/09/2018	**Alexandr Gershovich CHERNYY** 1950	Memorial Human Rights Centre Moscow	Anticorruption rally Moscow, 12/06/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 06/03/2018	Art. 5 (1) - unlawful detention - on 12/06/2017 escorting to a police station for compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000

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30.	45692/18 06/09/2018	**Aleksandr Vladislavovich ZHUKOV** 1993	Zhdanov Ivan Yuryevich Vilnius	Opposition rally Perm, 07/10/2017	Article 20.2 § 5 of CAO	20 hours of community work	Perm Regional Court 14/03/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500
31.	45710/18 22/09/2018	**Vladimir Igorevich VINICHENKO** 1990	Memorial Human Rights Centre Moscow	Anticorruption rally Moscow, 12/06/2017	Article 20.2 § 6.1 of CAO	fine of RUB 15,000	Moscow City Court 22/03/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500
32.	49552/18 11/10/2018	**Oleg Viktorovich POLYAKOV** 1983	Zhdanov Ivan Yuryevich Vilnius	"Voters' Strike" rally Volgograd, 28/01/2018	Article 20.2 § 5 of CAO	fine of RUB 10,000	Volgograd Regional Court 11/04/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500
33.	7369/19 28/01/2019	**Aleksey Vladimirovich NEBESNYY** 1987	Memorial Human Rights Centre Moscow	Anticorruption rally Moscow, 12/06/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 30/08/2018	Art. 5 (1) - unlawful detention - on 12/06/2017 escorting to a police station for compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000

[i] Plus any tax that may be chargeable to the applicants.